

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO SELL PERSONAL PROPERTY

[R.C. 2113.40, 2113.41, 2113.42, and 2113.43]

The fiduciary asks the Court to authorize the sale of the personal property of the decedent listed on the within schedule, at a public or private sale, for a fixed price or for the best price obtainable, and for cash or on terms as the Court may determine.

The fiduciary states that the sale will be in the best interests of the estate, that none of the property listed is subject to a demand for distribution in kind made by the surviving spouse or other beneficiary entitled to such distribution, and that none of the property listed is subject to a wish expressed by the decedent in the Will that it not be sold. Further, none of the property listed is specifically bequeathed; or if some or all of the property is specifically bequeathed, as noted on the schedule, either its sale is necessary to pay debts, or the persons entitled to it consented to the sale.

The fiduciary further states that: **[Check the applicable boxes]**

☐ The sale is before the expiration of the time within which the surviving spouse may elect to take at the appraised value and ☐ the surviving spouse consents to such sale or waives notice thereof ☐ the surviving spouse does not consent to such sale, ☐ the property is not perishable and the surviving spouse is entitled to notice of the sale as provided by law.

☐ The fiduciary further states that: **[Include any special allegations or information]**

The fiduciary further states that for a public sale, notice will be given by advertisement appearing at least three times in a newspaper of general circulation in the county during a period of fifteen days next preceding such sale and/or by advertisement posted not less than fifteen days next preceding such sale in at least five public places in the township or municipal corporation where such sale is to take place.

Fiduciary

CONSENT TO SALE AND WAIVER OF NOTICE

The undersigned, being the decedent's surviving spouse or other interested persons, hereby waive notice and consent to the sale as described herein.

Surviving Spouse

[illegible]

Probate Judge